

4.

CASE #	CASE NAME	HEARING NAME
CVRI2600215	VOLL VS MX FOOD T CORP	MOTION TO BE RELIEVED AS COUNSEL

Tentative Ruling:

The motion to be relieved as counsel is granted. Counsel is relieved as counsel of record for clients effective upon the filing of the proof of service of the signed order being served upon clients. If the proof of service is not filed, counsel will remain counsel of record for all purposes related to this action.

The court sets a Trial Readiness Conference on March 17, 2027, at 8:30 a.m.

5.

CASE #	CASE NAME	HEARING NAME
CVRI2601669	LEWIS VS ECOLOGY AUTO PARTS, INC.	DEMURRER

Tentative Ruling:

The meet-and-confer requirement has been met.

4th cause of action for dangerous condition of public property

Pursuant to Government Code § 835, in order for Plaintiffs to adequately plead a cause of action against Defendant for dangerous condition of public property, they must establish that (1) Defendant owned or controlled the property, (2) the property was in a dangerous condition at the time of the injury, (3) the dangerous condition created a reasonably foreseeable risk of the kind of injury that was occurred, (4) the negligent or wrongful conduct of Defendant's employee acting within the scope of employment created the dangerous condition or, Defendant had notice of the dangerous condition for a long enough time to have protected against it, (5) Plaintiffs were harmed, and (6) the dangerous condition was a substantial factor in causing Plaintiffs' harm.

Here, Plaintiffs allege a dangerous condition existed on Ironwood Avenue due to leaked fluid that came from an Ecology vehicle. (FAC, Ex. A, page 5, ¶23.) Plaintiffs further allege the fluid leak from Ecology's vehicle constituted a negligent act by Ecology [a third party], forming the basis of their claims against Ecology. (FAC, Ex. A, page 4, ¶ 21, and page 5, ¶ 22-23.)

In regard to dangerous conditions of public property that are created by third parties, the Supreme Court of California held in *Zelig v. County of Los Angeles* (2002) 27 Cal.4th 1112, 1137, that "there is no liability for injuries [due to a dangerous condition of public property] caused solely by the acts of third parties." The Supreme Court further went on